

Document

Execution Version

PRIVILEGED AND CONFIDENTIAL

LICENSE PURCHASE AGREEMENT

by and among

ECHOSTAR CORPORATION

THE OTHER SELLER PARTIES SET FORTH HEREIN

and

AT&T MOBILITY II LLC

Dated August 25, 2025

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LICENSE PURCHASE AGREEMENT

THIS LICENSE PURCHASE AGREEMENT (this

Agreement

, dated the 25th day of August, 2025 (the

Effective Date

, is by and among (i) EchoStar Corporation, a Nevada corporation (

Seller

, and each of the entities set forth on Schedule 1.0 hereto (together with Seller, the

Seller Parties

; and each a

Seller Party

) and (ii) AT&T Mobility II LLC, a Delaware limited liability company (

Buyer

). Each Seller Party and Buyer is a Party; and, collectively, they are the

Parties; and, as the context requires (

i.e.

, when the applicable provision describes a two-party relationship or interaction), the Seller Parties, collectively, shall be one party and Buyer shall be deemed to be the other Party.

RECITALS

WHEREAS, the Seller Parties hold the Seller Licenses, and desire to assign and transfer the Seller Licenses to the Buyer Assignee Parties, and the Buyer Assignee Parties desire to acquire from the Seller Parties, the Seller Licenses, all on the terms and subject to the conditions set forth herein;

WHEREAS, at the Closing, the Parties or their applicable Affiliates will enter into an amendment to each of (a) that certain Long-Term Spectrum Manager Lease Agreement, dated as of August 27, 2024, between SNR Wireless LicenseCo, LLC and New Cingular Wireless PCS, LLC;

New Cingular

), and (b) that certain Long-Term Spectrum Manager Lease Agreement, dated as of October 24, 2024, by and between Manifest Wireless L.L.C. and New Cingular (each, a

Hawaii Lease Agreement

), in the forms attached hereto as

Exhibits B-1

and

B-2

, pursuant to which, among other things, the Parties will amend each Hawaii Lease Agreement to extend its term for a period of ninety-nine (99) years (each, an

Extended Hawaii Lease Agreement

);

WHEREAS, concurrently with entry into this Agreement, Affiliates of the Seller Parties and Buyer are entering into that certain Waiver of Termination Charges (the

Waiver

), pursuant to which, among other things, the parties thereto have agreed to waive certain early termination charges with respect to the Seller Parties; and their Affiliates; early decommission of its wireless RAN, substantially in the form attached hereto as

Exhibit D

;

WHEREAS, concurrently with entry into this Agreement, Affiliates of the Seller Parties and Buyer are entering into that certain Release of Liabilities (the

Release

), pursuant to which, among other things, the parties thereto have agreed to the release of Buyer and its Affiliates from any and all claims related to the Hughes Communications India Private LTD v. The DIRECTV Group, Inc., Civil Action No. 20 cv-2624 (United States District Court for the Southern District of New York), substantially in the form attached hereto as

Exhibit E

;

WHEREAS, at the earliest time Buyer determines, in its sole discretion, to be advisable (after reasonably taking into account the views of Seller), the Parties will enter into a lease of the spectrum covered by the 3.45 GHz Licenses, as the term is defined in Article 1 (the

3.45 GHz Manager Lease

), substantially in the form attached hereto as

Exhibit F

, and provide the FCC notice thereof.

NOW, THEREFORE, in consideration of the recitals and of the mutual covenants, conditions and agreements set forth herein and for other good and valuable consideration, the receipt and sufficiency of which hereby are acknowledged, the Parties, intending to be legally bound, hereby agree as follows;

ARTICLE 1

DEFINITIONS

Unless otherwise stated in this Agreement, the following terms when used herein shall have the meanings assigned to them below (such meanings to be equally applicable to both the singular and plural forms of the terms defined);

1.1

“

3.45 GHz

” shall mean the 3.45 GHz Service licensed under Subpart Q of Part 27 of the FCC Rules using frequency bands specified in Section 27.5(o) of the FCC Rules.

1.2

“

3.45 GHz Licenses

” shall mean the Seller Licenses in the 3.45 GHz Service, as set forth in Part I of Exhibit A

.

1.3

“

3.45 GHz License and Hawaii Lease Purchase Price

” means an amount equal to \$10,050,000,000.00, as may be adjusted pursuant to Section 2.4

.

1.4

“

600 MHz

” shall mean the 600 MHz Service licensed under Subpart N of Part 27 of the FCC Rules using frequency bands specified in Section 27.5(l) of the FCC Rules.

1.5

“

600 MHz Build-Out Extensions

” shall mean the extensions of Seller Parties’ 600 MHz Build-Out Obligations granted by the FCC on September 20, 2024 listed on Schedule 3.7(b) of the Seller Disclosure Letter.

1.6

“

600 MHz Build-Out Obligations

” shall mean the buildout obligations for each 600 MHz License listed on Schedule 3.7(b) of the Seller Disclosure Letter.

1.7

“

600 MHz Build-Out Showings

” shall mean all notices filed by the Seller Parties with the FCC certifying compliance with any 600 MHz Build-Out Obligation.

1.8

“

600 MHz License Purchase Price

” means an amount equal to \$12,600,000,000.00, as may be adjusted pursuant to Section 2.4

.

1.9

“

600 MHz Licenses

” shall mean the Seller Licenses in the 600 MHz Service, listed in Part II of Exhibit A

.

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1.10

“

2016 Indenture

” means that certain Indenture, dated June 13, 2016, by and among DISH DBS Corporation, the

guarantors listed on the signature page and U.S. Bank National Association, as trustee.

1.11

“

2020 Indenture

” means that certain Indenture, dated July 1, 2020, by and among DISH DBS Corporation, the guarantors identified therein and U.S. Bank National Association, as trustee.

1.12

“

Access Restrictions

” shall have the meaning set forth in
Section 5.1(a)

.

1.13

“

Affiliate

” shall mean, with respect to any Person, any other Person that, directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such first-named Person;

provided

that, for the purposes of this Agreement each of Gigapower, LLC and Knight JV, LLC, and their respective Subsidiaries shall not be considered Affiliates of Buyer. The term “

control

” (including, with correlative meanings, the terms “

controlled by

” and “

under common control with

”), as applied to any Person, means the possession, direct or indirect, of the power to direct or cause the direction of the management and policies of such Person, whether through the ownership of voting securities or other ownership interest, by contract or otherwise.

1.14

“

Agreement

” shall mean this License Purchase Agreement and all exhibits and schedules hereto, as amended, supplemented or otherwise modified from time to time in accordance with the terms hereof.

1.15

“

Assignment and Acceptance Agreement

” shall have the meaning set forth in
Section 8.2(a)(ii)

hereof.

1.16

“

Breaching Party

” shall have the meaning set forth in
Section 10.1(a)(ii)

hereof.

1.17

“

Business Day

” shall mean any day other than (a) a Saturday or Sunday, (b) a federal holiday or day on which the FCC is closed or not open for a full day, or (c) a day on which banking and savings and loan institutions are authorized or required by Law to be closed in New York City.

1.18

“

Buyer

” shall have the meaning set forth in the Preamble.

1.19

“

Buyer Assignee Parties

” shall mean Buyer as indicated on

Exhibit A

to be the assignee of the Seller Licenses or its permitted assigns.

1.20

“

Buyer Fundamental Representations

” shall mean the representations and warranties set forth in

Section 4.1

(

Organization

),

Section 4.2

(

Authorization; Enforceability

) and

Section 4.6

(

No Finder Fees

).

1.21

“

Buyer Indemnified Persons

” shall have the meaning set forth in

Section 9.2

hereof.

1.22

“

Buyer Parent

” means AT&T Inc.

- 3 -

1.23

“

Buyer Excluded Asset Event

” shall have the meaning set forth in

Section 2.4(a)

hereof.

1.24

“

Buyer Regulatory Adverse Effect

” shall have the meaning set forth in

Section 5.3(d)

.

1.25

“

Claim Notice

” shall have the meaning set forth in

Section 9.4(a)

hereof.

1.26

;

Claimant

;

shall have the meaning set forth in

Section 9.4(a)

hereof.

1.27

;

Closing

;

shall have the meaning set forth in

Section 8.1(a)

hereof.

1.28

;

Closing Date

;

shall have the meaning set forth in

Section 8.1(a)

hereof.

1.29

;

Closing Purchase Price

;

shall mean an amount equal to the sum of (i) the 600 MHz License Purchase Price

plus

(ii) the 3.45 GHz License and Hawaii Lease Purchase Price, as may be adjusted pursuant to

Section 2.4

and

Section 2.6

.

1.30

;

Code

;

shall mean the Internal Revenue Code of 1986.

1.31

;

Collateral Source

;

shall have the meaning set forth in

Section 9.6.

1.32

;

Communications Act

;

shall mean the Communications Act of 1934.

1.33

;

Consent

;

shall mean any consent, permit, approval, authorization, notice, waiver or clearance of any

Governmental Authority or other Person.

1.34

;

Contract

;

shall mean any agreement, arrangement, commitment, contract, indenture, debenture, note,

credit agreement, evidence of indenture, instrument, lease, license, obligation, mortgage, understanding

or undertaking of any kind or character, or any other document or instrument to which any Person is a party or that is binding on any Person or its capital stock, assets or business.

1.35

“

DBS Tranche

” shall have the meaning set forth in Schedule 1.107 hereof.

1.36

“

Debt Pay-Off

” shall have the meaning set forth in

Section 5.8

hereof.

1.37

“

Debt Pay-Off Letter

” shall have the meaning set forth in

Section 5.8

hereof.

1.38

“

Deductible

” shall have the meaning set forth in

Section 9.5(c)

hereof.

1.39

“

Default

” shall mean (a) any breach or violation of, default under, contravention of, or conflict with, any Contract, Law, Order or Permit, (b) the occurrence of any event with or without the passage of time or the giving of notice or both would constitute a breach or violation of, default under, contravention of, or conflict with, any Contract, Law, Order or Permit, or (c) the occurrence of any event with or without the passage of time or the giving of notice or both would give rise to a right of any Person to exercise any remedy or obtain any relief under, terminate or revoke, suspend, cancel, modify or change the current terms of, or renegotiate, or to

- 4 -

accelerate the maturity or performance of, or to increase or impose any Liability or Lien under, any Contract, Law, Order or Permit.

1.40

“

Department of Defense

” means the United States Department of Defense.

1.41

“

Direct Claim

” shall have the meaning set forth in

Section 9.4(a)

hereof.

1.42

“

DISH Secured Indenture

” shall have meaning set forth in the Schedule 1.107 hereof.

1.43

“

EchoStar Receivable Company

” shall mean EchoStar Intercompany Receivable Company L.L.C.

1.44

“

EchoStar Tranche

” shall have meaning set forth in the Schedule 1.107 hereof.

1.45

“

Effective Date

” shall have the meaning set forth in the Preamble.

1.46

“

Enforceability Exceptions

” shall mean the exceptions or limitations to the enforceability of contracts under bankruptcy, insolvency, fraudulent conveyance, reorganization or transfer, receivership, moratorium or similar laws relating to or affecting creditors’ rights generally or by judicial discretion in the enforcement of specific performance, injunctive relief, and other equitable remedies, whether considered in a proceeding at law or in equity, and by public policies generally.

1.47

“

Excluded Asset

” shall have the meaning set forth in Section 2.4(a) hereof.

1.48

“

Excluded Asset Events

” shall have the meaning set forth in Section 2.4(a) hereof.

1.49

“

Excluded Asset Materiality Threshold

” shall mean an aggregate value of the Exclusion Reduction that exceeds (a) 5% of the aggregate purchase price attributed to the sum of (x) the 3.45 GHz Licenses listed in

Part I

of

Exhibit A

, with respect to the 3.45 GHz Licenses and (y) the Hawaii Licenses listed in

Part III

of

Exhibit A

, with respect to the Hawaii Licenses underlying the Hawaii Lease Agreements, and/or (b) 15% of the aggregate purchase price attributed to the 600 MHz Licenses listed in

Part II

of

Exhibit A

, with respect to the 600 MHz Licenses, in each case, the attribution of the aggregate purchase price to each Seller License and Hawaii License (as the case may be) shall be based on the percentages set forth in column “License Value (%)” of

Exhibit A

.

1.50

“

Excluded License

” shall have the meaning set forth in
Section 2.4(a)
hereof.

1.51

“

Exclusion Reduction

” shall have the meaning set forth in
Section 2.4(b)
hereof.

1.52

“

Extended Hawaii Lease Agreement

” shall have the meaning set forth in the Recitals.

1.53

“

FCC

” shall mean the Federal Communications Commission or a bureau thereof acting under
delegated authority.

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1.54

“

FCC Assignment Applications

” shall mean the following applications and notices to be filed by the Parties to obtain the FCC
Consent: (i) the FCC Form 603 applications (or other appropriate forms) for the assignment of the
Seller Licenses to Buyer, and (ii) requests for (a) a waiver or suspension, as applicable, of the FCC Rules
governing Permanent Discontinuance of Service until the fifth anniversary of the Closing Date (

provided
that, in no event shall the date included on the waiver request be later than December 31, 2030), (b) a
waiver, extension and/or substitution of the 600 MHz Build-Out Obligations such that (1) 40% of the
total nationwide population covered by the Seller Licenses shall be covered on or before the date that is
the third anniversary of the Closing Date, and (2) 75% of the total nationwide population covered by the
Seller Licenses and 40% of the total population covered by each Seller License on a license by license
basis shall be covered on or before the fifth anniversary of the Closing Date (

provided
that, in no event shall the date included on the waiver request be later than December 31, 2030), (c) a
waiver of Section 27.1606 of the FCC Rules to the extent necessary, (d) the approval of the FCC required
under ¶ 376 of the FCC’s Memorandum and Order, Declaratory Ruling, and Order of
Proposed Modification in Applications of T-Mobile U.S., Inc. and Sprint Corporation, 34 FCC Rcd. 10578
(2019) (the “

FCC T-Mobile/Sprint Order

”), and (e) any other waiver that is requested by Buyer with the prior written consent of Seller
(such consent not to be unreasonably withheld, conditioned or delayed).

1.55

“

FCC Authorization

” shall mean any license, Permit, lease or other authorization or Consent issued by the FCC.

1.56

“

FCC Consent

” shall mean the Consent of the FCC to the assignment of the Seller Licenses that are not

Excluded Assets by the Seller Parties to the Buyer Assignee Parties.

1.57

“

FCC Lease Notifications

” shall mean all notices required to be filed with the FCC to effectuate the Extended Hawaii Lease Agreements.

1.58

“

FCC Rules

” shall mean Title 47 of the Code of Federal Regulations, published FCC policies and published FCC decisions.

1.59

“

Final Order

” shall mean an action, decision or order by a Governmental Authority that is effective and as to which (a) no stay is in effect; (b) if any deadline for filing a request for stay or petition for reconsideration is designated by statute or regulation, it has passed; and (c) such Governmental Authority does not have the action or decision under reconsideration on its own motion and the time for such reconsideration has passed.

1.60

“

Fraud

” shall mean, with respect to any Party, an actual and intentional fraud with respect to the making of any representation or warranty set forth in

Section 2.6(b)

,

Article 3

,

Article 4

or the certificates contemplated by

Section 8.2(a)(i)

and

Section 8.2(b)(i)

(as applicable);

provided

,

however

, that such actual and intentional fraud of such Party shall only be deemed to exist if, with respect to the Seller Parties, the Seller Knowledge Parties, and, with respect to Buyer, the Buyer Knowledge Parties, had, in each case, (a) actual knowledge that such representations and warranties were actually breached when made and (b) the express intention that the other Party would rely on such breached representations and warranties to its detriment. Under no circumstances shall “Fraud” include any equitable fraud, negligent misrepresentation,

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promissory fraud, unfair dealings, extra-contractual fraud or any other fraud or torts based on recklessness or negligence.

1.61

“

Governmental Authority

” shall mean any federal, state, local, municipal or foreign governmental authority or instrumentality, including any court, legislature, tribunal, arbitrator, administrative, taxing or regulatory agency, department, bureau or commission (including any state public utilities commission).

1.62

“

Hawaii Lease Agreement

” shall have the meaning set forth in the Recitals.

1.63

“

Hawaii Licenses

” shall mean the licenses held by the Seller Parties and their Affiliates relating to the spectrum leased pursuant to a Hawaii Lease Agreement, as listed in Part III of

Exhibit A

.

1.64

“

HSR Act

” shall mean the Hart-Scott-Rodino Antitrust Improvements Act of 1976.

1.65

“

Impaired

” or “

Impairment

” shall mean, with respect to any Seller License or Hawaii License, (a) the existence of a circumstance with respect to such Seller License or Hawaii License such that either (x) any Seller Fundamental Representation made within this Agreement with respect to such Seller License or Hawaii License shall no longer be true and correct in all respects (other than

de minimis

inaccuracies) or (y) any other Seller Party representation, warranty, covenant or agreement made within this Agreement with respect to such Seller License or Hawaii License shall no longer be true and correct in all material respects, and, in either case, such circumstance adversely impairs, in a non-

de minimis

manner, the ordinary, commercial use of the spectrum underlying such Seller License or Hawaii License;

provided

that such circumstance shall not be deemed an Impairment if the Seller Parties commence and diligently pursue a cure within fifteen (15) days after any Seller Party becomes aware of such Impairment and such Impairment is fully remedied within sixty (60) days after any Seller Party becomes aware of such Impairment; (b) the loss, revocation, non

de minimis

and adverse modification, cancellation, termination, non-renewal or forfeiture of such Seller License or Hawaii License that, in each case, remains in effect two (2) Business Days prior to the earlier of (x) the end of the Initial Extension Period or (y) the date on which all of the conditions set forth in

ARTICLE 7

have been satisfied or waived, other than those conditions that, by their nature, are to be satisfied at Closing; or (c) any 600 MHz Licenses in a market in which as a result of one or more 600 MHz Licenses in such market becoming Excluded Assets, the total amount of megahertz of spectrum of 600 MHz Licenses in such market that would be conveyed is less than ten (10).

1.66

“

Indemnifying Party

” shall have the meaning set forth in

Section 9.4(a)

hereof.

1.67

“

Indemnity Period

” shall have the meaning set forth in
Section 9.1

hereof.

1.68

“

Initial Extension Period

” shall have the meaning set forth in
Section 10.1(a)(iii)

hereof.

1.69

“

Interference Consent

” shall mean, with respect to any FCC Authorization granted by the FCC, any Contract having current effect between any past or present holder of such FCC Authorization, on the one hand, and any past, present or proposed holder of an FCC Authorization for spectrum, or any wireless system operator, capacity lessee or sublessee using,

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leasing, subleasing or proposing to use any such channels, on the other hand, including any service area boundary extension agreements, with respect to or concerning: (a) relocation, relocation costs or relocation cost sharing under Part 24, 27 or 101 of the FCC Rules, (b) the coordination of adjacent market channel use or other matters concerned with the operation of adjacent markets; (c) co-channel or adjacent channel interference or the limitation of signal strength; (d) the acceptance of interference or signal strength from a third Person’s transmitters in excess of the interference or signal strength such third Person is entitled to cause or transmit to the authorized service area or service contour of the FCC Authorization under FCC Rules; (e) the location, access to or strength of signals within protected service areas or service contours; (f) transmitter antenna height or characteristics; (g) emission mask or emission type; (h) limiting transmission time; (i) sharing spectrum; (j) any enhancements to the rights of the holder of such FCC Authorization granted by any other holder of FCC Authorizations; (k) placing a limit on the FCC Authorization (or any predecessor authorization thereto) or any spectrum authorized thereby; (l) limiting, controlling or specifying the content of transmissions or the wave form of transmissions; or (m) any other limitation on or control of the freedom of the past, present or future holder of the FCC Authorization to deploy the spectrum authorized under such FCC Authorization in accordance with the FCC Rules and applicable Law.

1.70

“

Knowledge

” as used (a) with respect to the Seller Parties, the current, actual knowledge of the individuals set forth in

Schedule 1.70

of the Seller Disclosure Letter (the “

Seller Knowledge Parties

”) and (b) with respect to Buyer, the current, actual knowledge of the individuals set forth on
Schedule 1.70

hereto (the “

Buyer Knowledge Parties

”), in each case, after reasonable inquiry of such individuals’ direct reports.

1.71

“

Laws

” shall mean any federal, state, local, municipal or foreign statute, law (in